

TENTATIVE RULINGS FOR MAY 4, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2500226	<i>Ricardo Gomez v. LINC-Pepperwood Housing Investors, L.P. et al</i>	Plaintiff's Motion to Compel compliance with Deposition Subpoena

Tentative Ruling:

Motion:

The unopposed motion by Plaintiff Ricardo Gomez to compel compliance with the deposition subpoena served on non-party San Bernardino Sheriff's Department/Rancho Cucamonga Police Department is granted, for good cause shown. The Court finds that the burden of demonstrating any privilege under *California Evidence Code* Section 1040 is on the department. The proposed deponent was served with the motion and did not file any opposition. Therefore, the Court further finds that disclosure is not prohibited by *California Evidence Code* Section 1040. The San Bernardino Sheriff's Department/Rancho Cucamonga Police Department is ordered to comply on or before May 30, 2026.

Moving party is directed to prepare an Order consistent with the Court's ruling and give notice of ruling.

2.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB2221628	<i>Ying Zhao v. Hong Yan Li</i>	Defendant Hong Yan Li's Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One

Tentative Ruling:

Defendant filed a Motion to Compel responses to Form Interrogatories Set One on December 23, 2025 and the motion was set for hearing on March 26, 2026. Thereafter, there were multiple continuances on the Court's own motion but notice of the new dates was given to Plaintiff's former attorney, who was relieved as her attorney on October 22, 2025. As a result, the court is concerned that Plaintiff may not have notice of this hearing date. Therefore, the Court continues this motion to June 17, 2026, at 9:00 a.m. in Department R17.

The Court, on its own motion, vacates the TRC and trial dates and sets a Trial Setting Conference for June 17, 2026, at 9:00 a.m. in Department R17.

Defendant is ordered to give notice to Plaintiff.

3.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB2221628	<i>Ying Zhao v. Hong Yan Li</i>	Defendant Hong Yan Li's Motion to Compel Plaintiff's Responses to Form Interrogatories, Set Two

Tentative Ruling:

Defendant filed a Motion to Compel responses to Form Interrogatories Set Two on December 23, 2025 and the motion was set for hearing on March 26, 2026. Thereafter, there were multiple continuances on the Court's own motion but notice of the new dates was given to Plaintiff's former attorney, who was relieved as her attorney on October 22, 2025. As a result, the court is concerned that Plaintiff may not have notice of this hearing date. Therefore, the Court continues this motion to June 17, 2026, at 9:00 a.m. in Department R17.

Defendant is ordered to give notice to Plaintiff.

4.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB2221628	<i>Ying Zhao v. Hong Yan Li</i>	Defendant Hong Yan Li's Motion to Compel Compliance with Demand to Inspect Property

Tentative Ruling:

Defendant filed a Motion to Compel Compliance with Demand to Inspect Property on January 2, 2026 and the motion was set for hearing on March 26, 2026. Thereafter, there were multiple continuances on the Court's own motion but notice of the new dates was given to Plaintiff's former attorney, who was relieved as her attorney on October 22, 2025. As a result, the court is concerned that Plaintiff may not have notice of this hearing date. Therefore, the Court continues this motion to June 17, 2026, at 9:00 a.m. in Department R17.

Defendant is ordered to give notice to Plaintiff.